

26NWCV01966 26NWCV01966

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-23

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C09%2F23%2F2026

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Case Number: 26NWCV01966 Hearing Date: September 23, 2026 Dept: D

IRVINE HAUS CORP. V. WIND

CHASING INC., ET AL.

CASE NO.: 26NWCV01966

HEARING: 09/23/26 @ 9:30 a.m.

#14

TENTATIVE ORDER

Plaintiff Irvine Haus Corp.'s

Applications for Writ of Possession and for Temporary Restraining Order are
GRANTED.

Moving party to give notice.

Plaintiff Irvine Haus Corp. has filed

an Application for Writ of Possession and Application for Temporary Restraining
Order seeking immediate possession of property allegedly wrongfully detained by
Defendant Wind Chasing Inc.

Background

On June 5, 2026, Plaintiff Irvine

Haus Corp. ("Plaintiff" or "IHC") filed a complaint against Wind Chasing Inc.

("WCI"), Xu Chen ("Chen"), Wei Cheng Shen a/k/a Weicheng Shen a/k/a "Felix"

Cheng Shen ("Shen"), Hua Tang ("Tang"), and Does 1 through 5 alleging the

following causes of action (1) civil theft – Penal Code section 4969(c), (2) recovery of specific property/replevin, (3) conversion, (4) trespass to chattels, (5) constructive trust, (6) injunctive relief, and (7) declaratory relief. The Complaint alleges that around February 28, 2026, IHC and Defendants agreed that Defendants would perform logistical services for order fulfillment on behalf of IHC. IHC customers are typically retailers of household furniture. Defendants represented that they have a facility where such duties could be performed and they have established relationships with the United Parcel Service, Federal Express, and other carriers, that would facilitate the fulfillment of time-sensitive orders. The Complaint alleges that Defendants breached their duties because they did not have the ability to fulfill their obligations and failed to rapidly dispatch orders as promised. On May 6, 2026, Defendants terminated their agreement with IHC and demanded fees, retroactively and prospectively, for storage and certain services. Despite IHC's demands, Defendants refuse to return the property held, consisting of more than 1,000 individual items valued at approximately \$1,350,000.

On July 17, 2026, IHC filed the instant Application for Writ of Possession ("AWP") and for Temporary Restraining Order ("ATRO").

On July 20, 2026, IHC filed a First Amended Complaint ("FAC") adding causes of action for breach of contract and breach of duty of good faith and fair dealing.

On August 13, 2026, Defendants filed an Opposition to the AWP and ATRO. IHC filed a Reply on August 19, 2026.

Legal Standard

Pursuant to Code of Civil Procedure section 512.010, subdivision (a), "[u]pon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought." The application must "be executed under oath and include all of the following:

(1) A

showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.

(2) A

showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.

(3) A

particular description of the property and a statement of its value.

(4) A

statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.

(5) A

statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

(Code Civ. Proc., §512.010, subd

(b).) Such evidence may be set forth by affidavits filed with the application. (Id. at §512.010, subd. (c).)

Prior to the hearing on the

application for writ of possession, defendant must be served with: (a) a copy of the summons and complaint; (b) a Notice of Application and Hearing; and (c) a

Copy of the application and any affidavit in support thereof. (Code Civ. Proc., §512.030, subd. (a).) If the defendant has not appeared in the

action, and a writ, notice, order, or other paper is required to be personally served on the defendant under this title, service shall be made in the same

manner as a summons. (Id. at §512.030, subd. (b).)

“The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Proc., §§512.040, subd. (b), 512.060.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Id. at §511.090.) “If the defendant desires to oppose the issuance of the writ, he shall file with the court either an affidavit providing evidence sufficient to defeat the plaintiff’s right to issuance of the writ or an undertaking to stay the delivery of the property in accordance with Section 515.020.” (Id. at §512.040, subd. (c).)

“At or after the time he files his application for writ of possession, the plaintiff may apply for a temporary restraining order by setting forth in the application a statement of grounds justifying the issuance of such order.” (Code Civ. Proc., §513.010.) “In the discretion of the court, the temporary restraining order may prohibit the defendant from doing any or all of the following: (a) Transferring any interest in the property by sale, pledge, or grant of security interest, or otherwise disposing of, or encumbering, the property...(b) Concealing or otherwise removing the property in such a manner as to make it less available to seizure by the levying officer, (c) Impairing the value of the property either by acts of destruction or by failure to care for the property in a reasonable manner.” (Id. at §513.020.)

“[T]he court shall not issue a temporary restraining order or a writ of possession until the plaintiff has filed an undertaking with the court,” running in favor of defendant(s), if return of the property is ordered. (Code Civ. Proc., §§513.010, 515.010, subd. (a).)

A copy of the undertaking must be attached to the writ of possession. (Id. at §512.080, subd. (e).) The undertaking shall be in an amount not less than twice the value of the defendant’s interest in the property or in a greater amount...which is determined by the market value of the

property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property." (Id. at §515.010, subd. (a).) If the court determines that the defendant has no interest in the property then there is no requirement for an undertaking. (Id. at §515.010, subd. (b).)

"If a writ of possession is issued, the court may also issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court." (Code Civ. Proc., §512.070.)

Analysis

On June 15, 2026, Plaintiff IHC filed Proof of Service indicating that WCI was served by substituted service on June 10, 2026, with the Summons, Complaint, and associated papers. On July 17, 2026, IHC filed the instant Application for Writ of Possession and for Temporary Restraining Order as to WCI. On July 20, 2026, IHC filed the First Amended Complaint ("FAC"). On August 5, 2026, IHC filed Proof of Service indicating that the FAC, Summons, AWP and ATRO with supporting papers, and Notice of Hearing were served via electronic transmission, pursuant to agreement by the parties. On July 31, 2026, WCI filed a Notice of Acknowledgment of Receipt confirming receipt of the following documents: FAC, Summons, AWP and ATRO with supporting documents, and Notice of Hearing.

According to the AWP, Plaintiff is claiming ownership of "[h]ousehold goods, generally consisting of items of furniture or household fixtures, including, by way of example, such things as: bed frames, cabinetry packages, tables, chairs, and similar items, and generally contained in cardboard boxes or cartons and/or palletized ("Property")" with details and descriptions provided in Attachment 4. (AWP, p. 1.) Plaintiff believes the Property is identifiable by model numbers, as set forth in the AWP, and valued at \$865,485.30. (Ibid.; Declaration of Giant Chi, ¶¶3-4.) Furthermore, the Property is believed to be held in the commercial space of WCI, located at 8940 Sorenson Ave. #3, Santa Fe Springs, CA 90670, or possibly moved to other locations by WCI. (AWP, p. 2.) The AWP also confirms that the Property "has not been taken for a tax,

assessment, or fine, pursuant to statute, and has not been seized under an execution against the plaintiff's property.”
(Ibid.)

The AWP is supported by declarations from Giant Chi, IHC's Chief Executive Officer and Eric Hsu, IHC's Warehouse Coordinator. According to their declarations, “IHC's right to possession arises out of its ownership of the subject Property” as IHC purchases goods manufactured in Asia, generally from local suppliers, to sell to third parties that are either consumers or retailers in the United States. (Chi Decl., ¶3; Hsu Decl., ¶3.) The Property placed in WCI's possession were goods purchased and owned by IHC. (Ibid.) There are no agreements, bills, or receipts for warehouse costs produced by WCI as the agreement between IHC and WCI did not involve any warehousing or storage services. (Ibid.) WCI came into possession of the Property under the terms of a verbal agreement between IHC and WCI; however, WCI's detention of the Property is wrongful because the agreement did not permit WCI to “to unilaterally and simultaneously abandon its obligations” and to charge IHC for storage and labor. (Chi Decl., ¶5; Hsu Decl., ¶3.) At no point did IHC request that WCI store the Property or agreed to WCI's right to terminate the agreement and charge IHC for storage and labor, either retroactively or prospectively. (Chi Decl., ¶5.) Instead, IHC's goal was to obtain assistance of a third party in selling the Property and completing certain pre-existing orders. (Hsu Decl., ¶3.) WCI represented that it would use its connections and internal expertise in handling merchandise to rapidly dispatch any goods sold to the purchaser. (Ibid.) According to the terms of this verbal agreement, WCI would keep the Property at its location in Santa Fe Springs, California, sell the Property, handle the delivery to the purchaser using its resources and existing relationships with carriers, and subsequently, purchase the Property from IHC at IHC's best and lowest price. (Ibid.) Despite the agreement, WCI did not sell any of the Property and did not obtain ownership interest in any of the Property by purchasing it. (Ibid.) WCI itself disclaims any interest in the Property. (Ibid.) IHC's Warehouse Coordinator declares that he last saw the Property at the location listed on the AWP on July 9, 2026, and has no reason to believe the Property was moved, despite threats from WCI. (Id. at ¶¶6-7.)

IHC's Warehouse Coordinator adds that Defendant Shen represented in WeChat messages that WCI was scheduled to

vacate the warehouse and dispose of any remaining goods if IHC did not pay the warehouse storage fees demanded in exchange for the return of the Property. (Hsu Decl., ¶10, Ex. B.) Thus, there is an immediate danger that the Property may become impaired in value, vanish, or become subject to third-party claims for storage liens. (Ibid.)

In response, WCI claims that Defendants “affirmatively consent to Plaintiff taking immediate possession of all of its furniture and inventory and have attempted to facilitate precisely that result.” (Opposition, p. 1.) While Defendants attempted to make the goods available for pickup on August 13, 2026, the owner/operator of the warehouse, Fast Delivery Express Inc. (“Fast Delivery”) refused to permit the goods to be released on the basis of an independent “Warehouseman’s Lien” asserted against the goods. Thus, IHC cannot establish that WCI is wrongfully detaining the Property. Furthermore, there is no immediate danger that WCI will transfer, conceal, move, or destroy the Property or make it unavailable as Defendants have preserved the Property, disclosed its location, and are actively attempting to facilitate its return. Defendants argue that they cannot be held in contempt for the independent conduct of Fast Delivery.

In its Reply, IHC argues that WCI’s claimed willingness to return the Property does not present a valid reason to defeat the AWP or ATRO.

The Court finds that IHC has demonstrated the basis of its possession of the Property claimed along with a description of the Property and its value, and the manner by which WCI came into possession of the Property. IHC has also presented a statement regarding the location of the Property and that it has not been taken for a tax, assessment, or fine, pursuant to a statute or seized under an execution against the property of the plaintiff. Furthermore, IHC has demonstrated a valid basis for seeking a temporary restraining order prohibiting WCI from “transferring any interest in the property...by sale, pledge, or grant of security interest or otherwise disposing of or encumbering it,” or “impairing the value of the property either by acts of destruction or by failure to care for the property in a reasonable manner” such that “[n]one of the Property may be moved or concealed in any way; [n]one of the boxed, cartonized, or palletized Property may be touched or unwrapped or otherwise dismantled or separated; [n]o Property

not already palletized or cartonized or otherwise packaged may be separated in any way from its constituent parts.”

(ATRO, p. 1.) Given that the

Court determines that WCI does not have an interest in the Property, the Court waives the requirement for filing an undertaking.

The question in dispute is

whether the Applications are warranted on the basis that WCI is wrongfully detaining the Property, as required by Code of Civil Procedure section 512.010, subdivision (b)(2). The Court does not find that Defendants have presented a sufficient basis for denial of the Applications.

First, the evidence presented

establishes that WCI was wrongfully detaining the Property at the time the action was initiated and at the time the AWP was filed. California law requires that property be wrongfully detained at the time the action commenced, not necessarily at the time of the hearing on the writ application.

(Bell v. Haun (1908) 9 Cal.App. 41, 43.) Second, under Code of Civil Procedure section

720.210, a third party may assert interest in a property subject to a writ of possession claiming a superior lien or security interest. However, Defendants have not demonstrated that a third-party claim defeats a plaintiff's right to obtain a writ of possession. Third, the circumstances

surrounding Fast Delivery's control over the Property are vague. The Opposition argues that Defendants lost access to the warehouse due to a financial dispute between WCI and Fast Delivery; however, the allegations regarding the dispute are ambiguous and minimal such that it is not clear that Defendants are no longer in possession of the Property. Thus, based on the information presented in the AWP and the Opposition, the Court finds that IHC has fulfilled the statutory requirements for seeking a writ of possession and WCI has not presented a sufficient basis to deny the Application.

The Court also finds that the

requirements for the Application for Temporary Restraining Order have been satisfied. IHC's arguments for the TRO are further bolstered by WCI's claim that a third party may be seeking control and/or possession of the Property.

For these reasons, the

Applications for Writ of Possession and Temporary Restraining Order are

granted.

Conclusion

Based on the foregoing, Plaintiff
Irvine Haus Corp.'s Applications for Writ of Possession and for Temporary
Restraining Order are GRANTED.